# Unlocking Mineral and Energy Wealth

*ACT will make it easier to responsibly develop New Zealand's minerals and energy resources, creating high-paying jobs, strengthening our economic security, and ensuring New Zealanders benefit from the resources beneath our feet.*

Modern life depends on mining. The minerals used in phones, medical technology, buildings, transport and energy infrastructure have to come from somewhere.

New Zealand has valuable mineral and energy resources of its own. Developing them responsibly can create well-paid regional jobs, support new industries, strengthen domestic supply chains, provide strategic resources to our allies, and generate royalties for the Crown.

Yet it is unnecessarily difficult to explore for and develop the resources we have. Projects can face overlapping approval regimes, uncertain timeframes, unclear rules for access to government-owned land, and regulatory settings that discourage investment even where environmental effects can be responsibly managed.

The result is a missed opportunity. New Zealanders who want careers in mining and resources often have to move to Australia or further abroad, while New Zealand imports more of the materials and energy modern life depends on.

ACT wants New Zealand to be a country that builds things again. That means giving investors clear rules, giving communities confidence that environmental effects and rehabilitation will be properly managed, and giving young New Zealanders a pathway into highly skilled and well-paid careers here at home.

ACT will unlock New Zealand's mineral wealth with reforms that make responsible development easier, approvals faster and more predictable, and environmental obligations clearer.

## 01 Unlock New Zealand's minerals

New Zealand has valuable mineral resources of its own, and developing them responsibly can create well-paid regional jobs, strengthen supply chains, support new industries and generate royalties for the Crown.

Demand for critical minerals is changing rapidly as technology develops, global supply risks shift and our geological knowledge improves. New Zealand's rules need to be able to respond as new opportunities emerge.

ACT will:

- keep the Critical Minerals List up to date as demand, supply risks and geological knowledge change;
- establish national policy direction and standards for mines, quarries and mineral processing under the new planning legislation;
- retain fast-track access for eligible projects;
- amend legislation and create clear planning documents for exploration and extraction on government-owned land, excluding national parks and land protected under Schedule 4 of the Crown Minerals Act;

- work with industry and training providers to build the workforce new mining projects need, so more New Zealanders can build skilled careers here rather than having to move overseas; and
- refocus Earth Sciences New Zealand on clearly defined public-good science.

*ACT will unlock more of New Zealand's mineral potential by creating clear national rules for responsible development, while protecting national parks and Schedule 4 land.*

## 02 Strengthen New Zealand's energy security

A secure domestic supply of energy matters for households, businesses and New Zealand's wider resilience. Gas continues to play an important role in supporting industrial users and reliable electricity generation, particularly when renewable generation is unable to meet demand.

Domestic energy production can also strengthen New Zealand's resilience and give trusted partners another potential source of supply in increasingly contested global markets.

ACT will:

- keep onshore and offshore exploration open to responsive open-market applications so companies can invest when commercially viable prospects emerge;
- establish clear permitting rules for underground gas storage under the Crown Minerals Act, and consenting requirements under the new planning legislation, including for converting suitable depleted fields;
- remove barriers to commercially funded LNG import infrastructure as insurance, while prioritising the rebuilding of domestic gas supply;
- use national policy direction and standards to provide for reliable thermal generation, including gas peakers and dual-fuel plants; and
- allow businesses to choose the fuel that works for them, including gas and coal, while the Emissions Trading Scheme prices emissions.

*ACT will keep New Zealand open to developing its own energy resources and remove unnecessary barriers to the reliable energy our economy depends on.*

## 03 Cut delays and duplication

Mining and energy projects should be properly assessed, but businesses should not have to prove the same thing repeatedly to different parts of government or face regulatory burdens disproportionate to risk.

ACT will:

- remove duplicate approval tests by giving each law a defined role:
  - the Crown Minerals Act allocates Crown-owned petroleum and minerals and tests applicants ability to deliver work programmes;
  - the Planning Act and Natural Environment Act to manage development and environmental effects on land and within the territorial sea;
  - the Fast-track Approvals Act provides a combined approval pathway for eligible projects with significant regional or national benefits;
  - the EEZ Act enables offshore mineral development within enforceable environmental limits;
- set clear application requirements and statutory decision deadlines, including for exploration, appraisal and production permits and government-owned land access decisions;
- ensure statutory decision deadlines specify clearly when the clock starts, and when pauses and extensions permitted;
- enable remedies when an agency misses a deadline and require reasons for extensions to be published;

- match information requests, assessments and permit requirements to a project's scale and risk, using the best available evidence;
- provide a clear EEZ consenting pathway for offshore mineral development. Coordinate approvals across the environmental regulator, New Zealand Petroleum and Minerals, Maritime New Zealand and conservation agencies, using shared evidence and coordinated timetables while preserving each regulator's statutory role; and
- remove government-driven climate-reporting rules that discourage banks from financing lawful, commercially sound projects, so lending decisions can be made on commercial grounds.

*ACT will cut duplicated approvals, introduce clear decision deadlines, and make regulatory requirements proportionate to the real scale and risk of a project.*

## 04 Give investors confidence that the rules will last

Major mining and energy projects require companies to commit substantial capital years before earning a return. Investors need confidence that lawful permit rights will not be arbitrarily stripped away after that money has been committed.

ACT will:

- establish a statutory right to compensation for legitimate committed investment where the Crown withdraws permit rights or materially changes a permit holder's operating position for a new political purpose. Exclude speculative future profits from compensation;
- put property rights into the New Zealand Bill of Rights Act;
- require judicial review challenges to Crown Minerals Act permit decisions to be filed within 20 working days, except in exceptional circumstances;
- ensure filing a challenge does not automatically suspend a permit;
- require prompt hearings and all known grounds of challenge to be brought together;
- allow a permit decision to be set aside only where a material legal error could realistically have changed the outcome;
- allow minor process errors to be corrected without cancelling an otherwise lawful permit;
- strengthen courts' ability to award costs against repeated, abusive or deliberately delaying claims; and
- preserve regulators' powers to revoke permits for fraud, serious breaches or failure to meet work programmes.

*ACT will protect legitimate committed investment, strengthen property rights, and stop lawful projects being derailed by political reversals or abusive delay.*

## 05 Protect the environment and taxpayers

Responsible mining requires clear environmental rules and confidence that operators, rather than taxpayers, will meet the costs they create. This requires focussing regulation on the actual risks posed by each project, while giving regulators the tools to respond if unexpected effects emerge.

ACT will:

- replace precautionary decision tests in the EEZ Act with assessments based on the likelihood and consequences of harm, uncertainty in the evidence, and whether practical controls can keep effects within acceptable limits;
- target marine protection at significant ecological features, including important seamounts, habitats and breeding areas;
- enable adaptive management, including for mining-related marine discharges, using baseline surveys, staged operations and independent monitoring;
- give regulators the power to amend conditions when unanticipated effects arise, require remediation where necessary, and simplify conditions where evidence demonstrates a lower risk;

- require mining operators to fund rehabilitation, closure and any ongoing treatment associated with their sites;
- require petroleum permit holders to meet the costs of decommissioning;
- require financial assurance proportionate to operators' rehabilitation, decommissioning and ongoing-treatment liabilities, so taxpayers are not left with the cleanup bill; and
- for petroleum, set securities, transfer rules and trailing liability so taxpayers are protected without making investment or the sale of mature assets impossible.

*ACT will protect significant environmental values while making operators responsible for rehabilitation, decommissioning and remediation so taxpayers are not left carrying the cost.*

## Unlock the resources beneath our feet

New Zealand cannot build a modern economy while pretending the minerals and energy that economy depends on simply appear from somewhere else.

We have resources of our own, skilled people capable of developing them, and communities that can benefit from the investment, jobs and opportunities responsible resource development creates.

ACT's approach is to set clear environmental rules, protect areas of genuinely high conservation value, make operators pay for the effects and liabilities they create, and then allow responsible projects to proceed without unnecessary duplication and delay.

That will mean more investment in New Zealand, more highly paid careers in our regions, stronger domestic supply chains, greater economic and strategic resilience, and more royalties flowing back to the Crown.

New Zealanders should be able to build careers developing the resources the world needs here at home, rather than moving overseas to do it.

*ACT will unlock New Zealand's mineral and energy potential with clear rules, faster decisions, strong property rights and practical environmental protections.*